

erty (*c*). Nor if the value of the estate increase from the rise of agricultural produce will the trustee be personally liable, because he neglects for a few months to raise the rent; but if he wilfully continues the old rent when clearly a much higher rent can be obtained, he may be held responsible (*d*).

49. **Adequate consideration.** — In granting leases of charity lands care must be taken that the lease be for an adequate consideration, and if this be not observed, the Court will interfere and order the lease to be cancelled, and with the lease will also cancel the covenants (*e*).

50. **Leases at an under-value.** — The lease may be annulled on the mere ground of *under-value* (*f*); but it must be an under-value satisfactorily proved and considerable in amount; it is not enough to show that a little more might have been got for the estate than has been actually obtained; still less is it sufficient to infer the under-letting from the value of the property at some subsequent period (*g*).

51. **"Rent not to be raised."** — Even where it was ordained at the creation of the trust, that no lease should be made for above twenty-one years, and *the rent should not be raised*, it was held that the trustee would not be justified in granting leases from time to time at no more than the original reservation: that as the times alter and the price of provisions rises, the rent ought to be raised in proportion (*h*).

[*544] The * direction for leasing under the true value is no part of the charity, and in fact is *void in itself for perpetuity* (*a*).

(*c*) *Ferraby v. Hobson*, 2 Ph. 258, *per* Lord Cottenham.

(*d*) See *Ferraby v. Hobson*, 2 Ph. 255.

(*e*) *Attorney-General v. Morgan*, 2 Russ. 306.

(*f*) *East v. Ryal*, 2 P. W. 284; *Attorney-General v. Lord Gower*, 9 Mod. 224, *see* 229; *Attorney-General v. Magwood*, 18 Ves. 315; *Attorney-General v. Dixie*, 13 Ves. 519; *Poor of Yervel v. Sutton*, Duke, 43; *Eltham Parish v. Warreyn*, Duke, 67; *Wright v. Newport Pond School*,

Duke, 46; *Rowe v. Almsmen of Tavistock*, Duke, 42; *Crouch v. Citizens of Worcester*, Duke, 33; *Attorney-General v. Foord*, 6 Beav. 288.

(*g*) *Attorney-General v. Cross*, 3 Mer. 541, *per* Sir W. Grant.

(*h*) *Watson v. Hinsworth Hospital*, 2 Vern. 596; and *see* *Lydiatt v. Foach*, Id. 410; *Attorney-General v. Master of Catherine Hall, Cambridge*, Jac. 381; *Attorney-General v. St. John's Hospital*, 1 L. R. Ch. App. 92.

(*a*) *Hope v. Corporation of Gloucester*, 7 De G. M. & G. 647; *Attor-*